



INDEPENDENT CONTRACTOR AGREEMENT

This Independent Contractor Agreement ("Agreement") is made effective as of **January 1, 2026** (the "Effective Date"),

by and between:

Tinker Design & Storytelling, LLC, a United States limited liability company, with its principal place of business at **1538 Pemberton DR., 418, Columbus, OH, 43221-1508, United States** (the "Company"),

and

Cristopher David, an independent contractor residing at **22E South, One Uptown Residences, BGC, Taguig City, Philippines** (the "Contractor").

1. Term of Agreement

This Agreement shall commence on **January 1, 2026** and shall continue for a fixed term of **twelve (12) months**, ending on **December 31, 2026**, unless earlier terminated in accordance with this Agreement.

2. Scope of Services

The Contractor shall perform services for the Company as described in **Exhibit A – Description of Services** (the "Services"). Exhibit A may be updated from time to time by written agreement of the parties without requiring a full amendment of this Agreement.

The Contractor agrees to perform the Services in a professional and timely manner consistent with industry standards and the Company's operational requirements.

3. Engagement Model – Retainer Basis

3.1 Retainer Structure

The Contractor is engaged on a **retainer basis**, not on an hourly basis. The retainer represents availability, output, and responsibility for agreed-upon deliverables rather than time spent.

3.2 Daily Retainer

The Contractor shall be paid a daily retainer amount as specified in **Exhibit B – Compensation & Payment Terms**.



3.3 No Employment Relationship

Nothing in this Agreement shall be construed to create an employer–employee relationship, partnership, or joint venture. The Contractor remains an independent contractor at all times.

4. Deliverables, Task Tracking, and Accountability

4.1 Deliverables-Based Work

All work under this Agreement is deliverables-based. Each deliverable shall be documented and tracked using the Company's designated project management tools (e.g., ClickUp or its successor).

4.2 Task Card Updates

The Contractor is required to:

- Update assigned task cards **daily**, and
- Ensure weekly deliverables are reviewed and marked appropriately.

Completed deliverables **together with** accurate and timely task card updates serve as the primary proof of work performed. Both elements are required and are a prerequisite for payment eligibility.

4.3 Failure to Update

Failure to complete agreed deliverables **and/or** to properly update task cards may result in delayed or reduced payment, including forfeiture of holdback amounts as described below.

5. Compensation and 20% Holdback

5.1 Compensation

Compensation details, including daily retainer rates and payment schedules, are outlined in **Exhibit B**.

5.2 20% Holdback

Twenty percent (20%) of the Contractor's earned retainer for each payment period shall be withheld (the "Holdback Amount").

5.3 Release of Holdback

The Holdback Amount shall be released only upon:

- Completion of agreed daily and weekly deliverables,
- Proper and timely updating of task cards, and
- Satisfactory review by the Company.



5.4 Non-Release of Holdback

If deliverables are incomplete, undocumented, or repeatedly late, the Company reserves the right to withhold some or all of the Holdback Amount.

6. Invoicing and Payment Schedule

6.1 Invoicing

Invoices shall be submitted in accordance with the payment cycle specified in Exhibit B and must reflect completed deliverables for the applicable period.

6.2 Payment Method

Payments shall be made via the Company's designated payment platform (e.g., Wise) or another mutually agreed method.

7. Confidentiality

The Contractor agrees that all non-public information received during the engagement is confidential and proprietary to the Company. This obligation survives termination of this Agreement.

8. Intellectual Property

All work products, deliverables, documentation, and materials created by the Contractor in connection with the Services shall be deemed **work made for hire** and shall be the exclusive property of the Company.

To the extent any work is not considered work made for hire, the Contractor hereby irrevocably assigns all rights, title, and interest to the Company.

9. Compliance with Laws

The Contractor shall comply with all applicable laws and regulations of:

- The United States (State of Ohio, as applicable), and
- The Contractor's country of residence.

10. Termination

10.1 Termination for Convenience

Either party may terminate this Agreement with **fourteen (14) days written notice**.



10.2 Effect of Termination

Upon termination:

- The Contractor shall be paid for approved deliverables completed up to the termination date.
- Any unpaid Holdback Amounts shall be released only if corresponding deliverables have been completed and approved.

11. Non-Exclusivity

Unless otherwise stated in Exhibit A, the Contractor is free to provide services to other clients, provided such services do not create a conflict of interest with the Company.

12. Entire Agreement

This Agreement, together with its Exhibits, constitutes the entire agreement between the parties and supersedes all prior agreements, including previous hourly-based contracts.

Any amendments must be in writing and signed by both parties.

13. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the **State of Ohio, United States**, without regard to conflict of law principles.

14. Signatures

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

COMPANY

Tinker Design & Storytelling, LLC

Signature: _____

Name: _____

Title: _____

Date: _____

CONTRACTOR

Signature: _____

Name: _____

Date: _____



Exhibit A - Description of Services

1. Role Overview

The Contractor is engaged as a **Creative Prototyping Lead**, responsible for **creative experimentation, rapid prototyping, and creative quality elevation** across the Company's projects.

The Contractor explores and demonstrates creative ideas before they enter full production, producing prototypes, experiments, and creative artifacts that inform direction and execution.

The Contractor also provides **creative feedback and guidance** to the Content Creation team, particularly in relation to **social-first video formats and performance-driven creative execution**.

The Contractor operates within the operational framework defined by the Studio Operations Lead and collaborates with the Studio Director, Project Manager, and Content team.

2. Scope of Services

The Contractor shall perform the following Services, including but not limited to:

Creative Prototyping & Experimentation

- Develop creative prototypes, demos, or proof-of-concepts
- Experiment with formats, mechanics, and creative approaches
- Explore ideas across games, content, and interactive experiences
- Validate concepts through hands-on experimentation

Creative Translation & Evaluation

- Translate abstract creative direction into demonstrable outputs
- Identify strengths, weaknesses, and risks in creative ideas
- Summarize findings and recommendations clearly

Social-First Creative Guidance

- Provide feedback and direction on:
 - Video hooks and pacing
 - Platform-specific formatting
 - Creative structures optimized for engagement
- Demonstrate best practices through example prototypes
- Support content quality without owning publishing or analytics



Video Documentation & Demonstration

- Record videos explaining creative ideas, prototypes, or experiments
- Capture in-engine, edited, or recorded demonstrations as appropriate
- Record playtesting or creative walkthroughs when relevant

Task Tracking & Documentation

- Track creative work using the Company's project management system
- Attach prototypes, videos, and artifacts to task records
- Document outcomes and learnings from experiments

3. Deliverables

Deliverables may include, but are not limited to:

- Creative prototypes and demos
- Experimental content formats
- Proof-of-concept builds or mockups
- Recorded walkthroughs or demonstrations
- Creative experiment summaries and findings

Completed deliverables, together with proper task tracking and documentation, constitute proof of work.

4. Tools & Working Style

The Contractor shall use appropriate creative tools, game engines, editing tools, and the Company's designated project management and communication platforms as the system of record for work performed.

Exhibit B – Compensation & Payment Terms

1. Retainer Structure

The Contractor shall be compensated on a **daily retainer basis** for responsibility and execution of assigned projects.

- **Daily Retainer Rate: USD \$176** per working day
- **Computed Hourly Rate: USD \$22** per working hour

2. Payment Period

Payments shall be calculated and processed on a **bi-monthly basis**, aligned with the Company's standard payment cycles:

- Mid-month period, and
- End-of-month period

3. Holdback

- Twenty percent (20%) of earned retainer fees per payment period shall be withheld as a **Holdback Amount**.
- Release of the Holdback Amount is contingent upon:
 - Completion of agreed deliverables, and
 - Accurate and timely task tracking within the Company's project management system

4. Proof of Work

For the avoidance of doubt:

- **Completed deliverables together with updated task cards constitute proof of work.**
- Time spent without completed and documented deliverables does not qualify as billable work under this Agreement.

5. Payment Method

Payments shall be made via the Company's designated payment platform (e.g., Wise), unless otherwise agreed in writing.

6. Adjustments

Any adjustments to the retainer rate, payment cadence, or holdback structure must be agreed upon in writing and documented as an amendment to this Exhibit.